



SPONSOR: Rep. S. Moore & Sen. Lockman
Reps. Burns, Morrison, Neal, Phillips, Ross Levin,
Wilson-Anton, Lambert, Bush

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 125

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO THE FREE SCHOOL MEALS PROGRAM.

1 WHEREAS, the 152nd General Assembly passed HS 2 for HB 125 to make available free breakfast and lunch to
2 students who qualify for a reduced-price meal under the federal School Breakfast Program or the National School Lunch
3 Program; and

4 WHEREAS, enactment of HS 2 for HB 125 was an important first step to combatting childhood hunger,
5 improving nutrition, and maximizing learning outcomes; and

6 WHEREAS, during the COVID-19 pandemic, Delaware, along with other states, used waivers offered by the U.S.
7 Department of Agriculture to provide free meals to all students; and

8 WHEREAS, 13 states have enacted legislation to permanently allow free school meals for all students and at least
9 17 other states have introduced legislation to enact such a program; and

10 WHEREAS, the Food Research & Action Center collected feedback from the 5 states that operated a universal
11 meal program during the 2022-2023 school year, after the pandemic-era programs ended; and

12 WHEREAS, all 5 of those states reported the following benefits of providing universal free meals: a reduction in
13 childhood hunger, easier for parents and guardians, elimination of stigma associated with school meals, supported academic
14 achievement; and

15 WHEREAS, research published in the Journal of Health Economics suggests that students from low-income
16 households who do qualify for free school meals are more willing to eat those school meals when they are free for
17 everyone, suggesting that “the stigma of free school meals may be declining after universal access”; and

18 WHEREAS, according to the United States Department of Agriculture’s Economic Research Service, food prices
19 are predicted to increase 2.2% in 2025 with prices for healthy foods like eggs, forecasted to increase 20.3% and fruit,
20 forecasted to increase 0.7%; and

21 WHEREAS, as the cost of groceries increases, so does food insecurity and overconsumption of sugary and ultra
22 processed foods, which are perceived as being less expensive; and

WHEREAS, school meals are the healthiest meals in a day for most kids, according to research cited by the United States Department of Agriculture; and

WHEREAS, the General Assembly finds that it is in the best interests of Delaware students and their families to enact a free school meals for all program that provides free meals for school students.

NOW, THEREFORE:

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 4137A, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating Delaware Code provisions accordingly:

§ 4137A. Free School Meals Program.

(a) *Definitions.* —

~~As used in~~ For purposes of this section:

(1) “Breakfast” means as defined in 7 C.F.R. § 220.2.

(4) ~~(2)~~ “Department” means the Department of Education.

(3) “Eligible meal” means breakfast or lunch satisfying Program requirements.

(4) “Lunch” means as defined in 7 C.F.R. § 210.2.

~~(2)~~ (5) “National School Lunch Program” means the federal Richard B. Russell National School Lunch Act created in 42 U.S.C. § 1751 et seq.

(3) ~~(6)~~ “Program” means the Free School Meals Program created under this section.

~~(4) “Reduced-price meal” means a meal a child is entitled to receive under the School Breakfast Program or National School Lunch Program when the family’s income is between 130% and 185% of the federal poverty threshold, as published annually in the Federal Register, and as required under § 9 of the Richard B. Russell National School Lunch Act, 42 U.S.C. § 1758.~~

(5) ~~(7)~~ “School Breakfast Program” means the federal School Breakfast Program created in 42 U.S.C. § 1773 et seq.

~~(b) All public schools that participate in the School Breakfast Program and National School Lunch Program must provide a breakfast meal and a lunch meal free of charge to any student who qualifies for a reduced-price meal with a maximum of 1 free meal for each meal service period. The meals provided free of charge under this Program must meet the meal pattern requirements under the School Breakfast Program and National School Lunch Program. Subject to subsection (d) of this section, a public school that participates in the School Breakfast Program shall make available a breakfast free of charge to any attending student, regardless of household income.~~

53 (c) Subject to subsection (d) of this section, a public school that participates in the National School Lunch Program
54 shall make available a lunch free of charge to any attending student, regardless of household income.

55 (d) A student may receive a maximum of 1 free meal for each meal service period.

56 ~~(e)~~ (e) The Department shall reimburse all public schools participating in the Program. The amount of
57 reimbursement, by the Department that the Department reimburses to each participating public school for each budget year,
58 year will be equal to the federal free reimbursement rate multiplied by the total number of eligible meals that the
59 participating public school serves during the applicable budget year minus the total amount of reimbursement for eligible
60 meals served during the applicable budget year that the participating public school receives under the School Breakfast
61 Program and National School Lunch Program.

62 Section 2. This Act takes effect 30 days following the date of publication in the Register of Regulations of a notice
63 by the Controller General that funds have been appropriated to implement the provisions of this Act.

SYNOPSIS

This Act builds on House Substitute 2 for House Bill No. 125, enacted by the 152nd General Assembly, which extended free meals to students eligible for a reduced-price meal under federal law. This Act expands the availability of free meals by making them available to all public school students attending schools participating in the federal School Breakfast Program or National School Lunch Program. This Act requires public schools participating in the School Breakfast Program to make available free breakfasts to all attending students, regardless of household income. This Act also requires public schools participating in the National School Lunch Program to make available free lunches to all attending students, regardless of household income.

This Act requires the Department of Education to reimburse schools for costs of eligible meals not reimbursed by the United States Department of Agriculture under the School Breakfast Program and National School Lunch Program.

This Act adds definitions for breakfast, lunch, and eligible meal. This Act also removes the provision about the requirement for meals to follow the meal pattern requirements under the School Breakfast Program and the National School Lunch Program because the definitions of breakfast and lunch now include that requirement by reference to federal law.

This Act takes effect 30 days following the date of publication in the Register of Regulations of a notice from the Controller General that funds have been appropriated to implement the provisions of this Act.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.